



POLICE DEPARTMENT

February 2, 2010

MEMORANDUM FOR: Police Commissioner

RE: Police Officer Hector Rodriguez
Tax Registry No. 902301
90 Precinct
Disciplinary Case No. 84959/09

The above-named member of the Department appeared before me on November 18, 2009, charged with the following:

1. Said Police Officer Hector Rodriguez, assigned to 90 Precinct, on or about September 11, 2008, at a location known to the Department, Kings County, with intent to harass, annoy, threaten or alarm another person, said officer communicated with an individual known to the Department in a manner likely to cause annoyance or alarm in that said officer left a telephone message for an individual known to the Department which stated in sum and substance "I better not catch you" and "your shit is coming."

P.G. 203-10 Page 1, Paragraph 5 – PROHIBITED CONDUCT
N.Y.S. Penal Law 240.30 (1) (a) – AGGRAVATED HARASSMENT IN THE
SECOND DEGREE

The Department was represented by Rita Bieniewicz, Esq., Department Advocate's Office, and the Respondent was represented by John Tynan, Esq.

The Respondent, through his counsel, entered a plea of Guilty to the subject charge. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

COURTESY • PROFESSIONALISM • RESPECT

DECISION

The Respondent, having pleaded Guilty, is found Guilty.

SUMMARY OF EVIDENCE IN MITIGATION

Message left by the Respondent on Luciano Cintron's telephone answering machine

The Assistant Department Advocate (the Advocate) and the Respondent's attorney stipulated the admission into evidence of a tape recording of the message that the Respondent left on Luciano Cintron's telephone answering machine on September 11, 2008 at 8:34 a.m. [Department's Exhibit (DX) 1]. The Advocate also provided a transcript of this recording (DX 1A).¹ The message left by the Respondent is as follows:

You piece of shit, you fucking ma, ma, let me tell you something. This crap with you threatening my son (inaudible) in the fucking house, you better swear to God bro I don't fucking catch you. This crap is over. I'm seeking Criminal Court. I'm going to have her mother take your fucking son away from the house and I'm taking Daniel. Fucking piece of shit do not think for one second this is over 'cause you ain't a man. When I catch you, you're going to be fucking sorry your mother didn't fucking swallow instead of giving birth to a mother fucker like you. Your shit is coming bro. I'm letting you know now you fuck. Your shit is coming. The biggest mistake you did was threatening my son and you're going to, your shit is coming. So don't act like a big mother fucker because trust me this crap ain't over all right? Just so you know you fucking pussy. You can't even fucking talk on the phone you... (Answering machine stops recording and cuts off the rest of the sentence).

The Respondent's testimony in mitigation of his misconduct

The Respondent testified that he married Carmen Quintana in 1989 and they had one child together, a son named Daniel who is now 12-years-old. They divorced and Quintana obtained custody of Daniel. The Respondent has visitation rights regarding Daniel pursuant to a court order. As of September, 2008, Quintana had been living with

¹ The transcript provided by the Advocate contains a number of inaccuracies regarding the specific statements the Respondent made and the words he uttered and it also omits a number of statements the Respondent made which are audible on the recording.

Luciano Cintron [REDACTED], within the confines [REDACTED], for about six years. Prior to September, 2008, Daniel had called the Respondent, [REDACTED], to report that his mother and Cintron were having arguments.

On September 4, 2008, at 7:30 a.m., Daniel called him and told him that he was scared because his mother and Cintron had argued and Cintron had said that he was going to go get a gun and shoot everybody in the house. The Respondent told Daniel to call 911. The Respondent got in his car and drove to [REDACTED] carrying only his Department ID. En route he called Daniel who told him that Cintron had left. When he arrived at the residence Cintron was not there so he drove Daniel to school and he drove Quintana to the [REDACTED] where she filed a complaint report against Cintron. He then drove Quintana to [REDACTED] Family Court, but she was unable to obtain an order of protection against Cintron that day. When they left Family Court after 6:00 p.m., he dropped Quintana at her residence. He then took his son home with him to his residence [REDACTED]. About 25 hours later, his son tried to telephone his mother but Cintron picked up the phone. When the Respondent realized that Cintron was on the line speaking to his son, he took the phone from his son and he began to argue with Cintron over the phone.

On September 10, 2008, the Respondent received a telephone call from Cintron who threatened to shoot him in the head. The Respondent then went to the [REDACTED] Precinct and filed a complaint against Cintron for aggravated harassment.

On September 11, 2008, as he was driving Daniel to school, he noticed that he looked very scared. The Respondent testified that he became livid at Cintron for having frightened his son so badly by threatening to shoot him. He testified that because he is only human, he reacted without thinking, picked up his cell phone and immediately

telephoned Cintron from his car. When his call was answered by Cintron's message machine, he left the above-quoted message (DX 1). The Respondent acknowledged that because he was very angry at that point in time, he should not have called Cintron then.

Cintron pleaded guilty to the charge of aggravated harassment and an Order of Protection was issued to the Respondent against Cintron. The Respondent now has custody of his son because Quintana was arrested for physically and mentally abusing her son. The Respondent acknowledged that while performing police duties he has handled complaints involving allegations of aggravated harassment and he is familiar with the elements of this offense. Thus, he was aware that what he said to Cintron constituted aggravated harassment. He was placed on modified assignment on September 11, 2008 and he was not restored to full duty until July 6, 2009.

PENALTY

In order to determine an appropriate penalty, the Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 N.Y. 2d 222 (1974). The Respondent was appointed to the Department on June 30, 1992. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

The Respondent has pleaded guilty and admitted that, with intent to harass Cintron, he left a telephone message for Cintron in which he stated in sum and substance that he better not "catch" Cintron and that Cintron's "shit" is coming.

The Assistant Department Advocate (the Advocate) recommended that the Respondent be required to forfeit 15 vacation days. I believe a lesser penalty is warranted based on the circumstances presented here.

Cintron's conviction for aggravated harassment establishes that, as the Respondent claimed, Cintron not only threatened to shoot the Respondent's son Daniel, he also threatened to shoot the Respondent. Also, it is not disputed that for a full week before he left the charged phone message, the Respondent dealt with Cintron's threats properly by pursuing legal remedies to end these threats.

In addition, the tape recording of the message the Respondent left supports his contention that his sole purpose in leaving this message was to warn Cintron that there would be legal consequences if he continued to threaten Daniel. Although the Respondent's words "you better swear to God bro I don't fucking catch you" and "your shit is coming" can be interpreted as implying that the Respondent might engage in extra-illegal action, the Respondent's specific statements ("I'm seeking Criminal Court" and "I'm taking Daniel") relate to legal actions.

Finally, it is clear that the Respondent's single act of verbal harassment was a spontaneous emotional outburst triggered by the frightened look on his son's face. Angry that Cintron had frightened his child so badly that it was visible on the child's face, he let his emotions get the best of him and he reacted by calling Cintron and uttering an emotional verbal tirade that he knew was being recorded on Cintron's telephone message machine. Thus, the Respondent's sole act of verbal harassment was not a premeditated, planned act. Rather, it was an instinctive, albeit inappropriate, reaction.

Penalties in excess of ten vacation days have generally been imposed only for premeditated acts of harassment and/or multiple acts of harassment. For example, in Disciplinary Case No. 83534/07 (approved on December 23, 2009), a 14-year member with no prior disciplinary record forfeited 15 vacation days for harassing her neighbor by intentionally placing a large rock in front of the neighbor's car and, on a second occasion, by taking photographs of him. When the neighbor asked why she was taking photographs of him, the member replied, "Shut the fuck up, you faggot!"

Similarly, in Disciplinary Case No. 82986/07 (approved on February 12, 2009), a seven-year member with no prior disciplinary record forfeited 18 vacation days for making over 30 separate harassing telephone calls to the wife of a man the member had been dating.

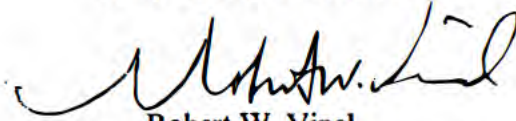
In a case where the facts closely match the facts here, Disciplinary Case No. 82762/07 (approved on August 19, 2008), an 11-year member with no prior disciplinary record forfeited 12 vacation days for sending a single harassing text message to the complainant in which he threatened to stalk him and instigate a confrontation. However, that case differs from the present case in that the penalty in that case also covered the member's additional misconduct of visiting the complainant while on duty for no legitimate purpose, making 34 personal phone calls using a Department cell phone and using a Department vehicle for a personal matter.

The Respondent is a 17-year member with no prior formal disciplinary record who has contritely acknowledged his misconduct and who was on modified assignment for nearly a year as a result of this charge. Nonetheless, his profanity-laced verbal tirade

was unbecoming for a member of the service who was fully aware that what he was saying constituted aggravated harassment.

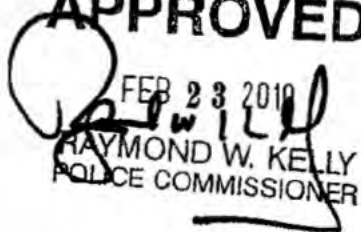
It is recommended that the Respondent be required to forfeit five vacation days.

Respectfully submitted,



Robert W. Vinal
Assistant Deputy Commissioner - Trials

APPROVED



FEB 23 2010
RAYMOND W. KELLY
POLICE COMMISSIONER

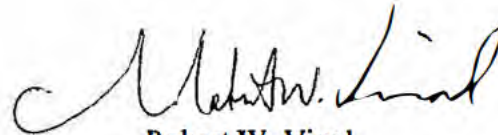
POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner - Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER HECTOR RODRIGUEZ
TAX REGISTRY NO. 902301
DISCIPLINARY CASE NO. 84959/09

The Respondent received an overall rating of 3.0 on his 2008 annual performance evaluation, 3.0 on his 2007 annual evaluation and 3.0 on his 2006 evaluation. He has been awarded two Excellent Police Duty medals. [REDACTED]
[REDACTED] He has no prior formal disciplinary record.

On February 13, 2009, he was placed in Level - II Disciplinary Monitoring based on his overall record.

For your consideration.



Robert W. Vinal
Assistant Deputy Commissioner - Trials